

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

Index No.:

-----X
DARRELL FRANCIS

SUMMONS

Plaintiff,

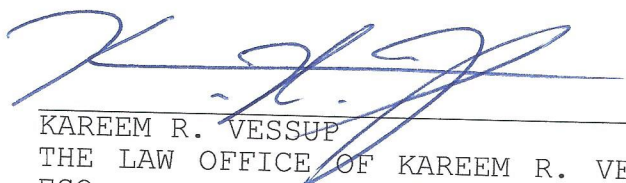
Plaintiffs designate
QUEENS County as the
place of trial.

-against-

THE CITY OF NEW YORK, P.O. SHAUN HEALY
(TAX REG. 950577) and P.O. JONATHAN
BARRUCHERI (Tax Reg. 952448),The basis of venue
is: where the Tort
aroseDefendants.
-----XThe Tort arose in:
QUEENS COUNTY

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiffs' attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: JAMAICA, NEW YORK
AUGUST 26, 2016
KAREEM R. VESSUP
THE LAW OFFICE OF KAREEM R. VESSUP
ESQ.Attorneys for Plaintiff
DARRELL FRANCIS
89-31 161st Street, Suite 705
Jamaica, New York 11432TO: Corporation Counsel of
The City of New York
100 Church Street
New York, NY 10007P.O Shaun Healy
One Police Plaza
New York, NY 10007

P.O. Jonathan Baruccheri

One Police Plaza
New York, NY 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
DARRELL FRANCIS

Plaintiff,

Index No.:

-against-

COMPLAINT

THE CITY OF NEW YORK, P.O. SHAUN HEALY
(TAX REG. 950577) and P.O. JONATHAN
BARUCCHERI (TAX REG. 952448)),

Defendants.
-----X

Plaintiff, **DARRELL FRANCIS**, by his attorneys, **THE LAW OFFICE OF KAREEM R. VESSUP, ESQ.**, complaining of the Defendants herein respectfully allege as follows:

1. That at the time of the commencement of this action Plaintiff **DARRELL FRANCIS** was a resident of the County of Queens, State of New York.

2. At all times mentioned, the Defendant, **THE CITY OF NEW YORK**, was and is a municipal corporation duly organized and existing by virtue of the laws of the State of New York.

3. Upon information and belief, at all times mentioned, the Defendants, **P.O. SHAUN HEALY (TAX REG. 950577) and P.O. JONATHAN BARUCCHERI (TAX REG. 952448)**, were and continue to be police officers of the Defendant **THE CITY OF NEW YORK**, and at all times herein were acting in such capacity as the agents, servants and employees of the Defendant, **THE CITY OF NEW YORK**.

FACTS

4. On or about August 27, 2013 at approximately Plaintiff

DARRELL FRANCIS was a resident of The New York City Housing Authority's Redfern Houses in Far Rockaway, Queens.

5. On that date Plaintiff **DARRELL FRANCIS** was present within Apartment 1F of 14-20 Redfern Avenue.

6. At approximately 11:00pm Defendant Police Officers entered the afore-described location and struck, kicked, punched and otherwise hit Plaintiff about his body and face.

AS AND FOR A FIRST CAUSE OF ACTION

7. Plaintiff realleges, repeats and reiterates the allegations contained in Paragraphs "1" through "6" with the same force and affect as repeated herein.

8. On or about August 27, 2013 at approximately 11:00pm, within 14-30 Redfern Avenue Apt. 1F, County of Queens, City and State of New York the Defendants jointly and severally subjected Plaintiff **DARRELL FRANCIS** a to reasonable apprehension of a harmful and/or offensive touching.

9. The aforementioned conduct of defendants was not privileged by law nor did Plaintiff give his consent to the conduct.

10. As a result of the Defendants' conduct Plaintiff was damaged.

AS AND FOR A SECOND CAUSE OF ACTION

11. Plaintiff realleges, repeats and reiterates the

allegations contained in Paragraphs "1" through "10" with the same force and affect as repeated herein.

12. On or about August 27, 2013 at approximately 11:00pm, within 14-30 Redfern Avenue Apt. 1F, County of Queens, City and State of New York the Defendants jointly and severally subjected Plaintiff **DARRELL FRANCIS** to a harmful and offensive touching.

13. The harmful and/or offensive contact was excessive in that it exceeded the amount of contact reasonable under the circumstances.

14. The aforementioned conduct of defendants was not privileged by law nor did Plaintiff consent to the touching.

15. Upon information and belief, the use of force was punitive and designed to punish or teach Plaintiff a lesson.

16. As a result of the Defendants' conduct Plaintiff was damaged.

AS AND FOR A THIRD CAUSE OF ACTION

17. Plaintiff realleges, repeats and reiterates the allegations contained in Paragraphs "1" through "16" with the same force and affect as repeated herein.

18. Defendants **P.O. SHAUN HEALY (TAX REG. 950577)** and **P.O. JONATHAN BARUCCHERI (TAX REG. 952448)** owed Plaintiff a duty to act reasonably in the performance of their duties as police officers for the New York City Police Department.

19. Defendants **P.O. SHAUN HEALY (TAX REG. 950577)** and **P.O.**

JONATHAN BARUCCHERI (TAX REG. 952448) owed Plaintiff a duty to act consistent with the rules, regulations and training of the New York City Police Department and consistent with their oaths to uphold and enforce the laws expressed in the Constitutions of the United States and New York State, and the Laws of the State of New York.

20. That on August 27, 2013, and continuing thereafter, the Defendants jointly and severally breached the duties owed to Plaintiff by failing to act reasonably in the performance of their duties as Police Officers of the New York City Police Department and by failing to act consistent with the rules, regulations and training of the New York City Police Department, and by failing to act consistent with their oaths to uphold and enforce the laws expressed in the Constitutions of the United States and New York State, and the Laws of the State of New York.

21. As a direct and proximate result of the Defendants breaches of duty Plaintiff sustained damages.

AS AND FOR A FOURTH CAUSE OF ACTION

22. Plaintiff realleges, repeats and reiterates the allegations contained in Paragraphs "1" through "21" with the same force and affect as repeated herein.

23. In relevant part, 42 U.S.C. §1983 provides that, "[e]very person who, under color of any statute, ordinance, regulation, custom, or usage, of any State or Territory or the

District of Columbia, subjects, or causes to be subjected, any citizen of the United States or other person within the jurisdiction thereof to the deprivation of any rights, privileges, or immunities secured by the Constitution and laws shall be liable to the party injured in an action at law, suit in equity, or other proper proceeding for redress."

24. That on or about August 27, 2013 and continuing thereafter, Defendants **P.O. SHAUN HEALY (TAX REG. 950577)** and **P.O. JONATHAN BARUCCHERI (TAX REG. 952448)** were New York City Police Department Police Officers and/or Detectives acting under color of law and in the course of their duties and obligations.

25. That upon information and belief on August 27, 2013 Defendants **P.O. SHAUN HEALY (TAX REG. 950577)** and **P.O. JONATHAN BARUCCHERI (TAX REG. 952448)** discriminated against Plaintiff and assaulted, battered, falsely arrested, falsely imprisoned and maliciously prosecuted him in violation of his rights and privileges guaranteed by the Fourth and Fourteenth Amendments of the United States Constitution, as well as under and other applicable federal constitutional and statutory rights.

26. In the manner aforesaid Defendants **P.O. SHAUN HEALY (TAX REG. 950577)** and **P.O. JONATHAN BARUCCHERI (TAX REG. 952448)** acted maliciously, willfully and with wanton disregard of Plaintiff rights to be free from:

- a. Civil Assault and Battery
- b. Right to be free from summary punishment

- c. Unlawful interference with his liberty rights
- d. Right to be free from the excessive use of force

27. As a result of Defendants' conduct Plaintiff suffered a deprivation of the above enumerated rights guaranteed by the United States Constitution, the laws of The United States and the State of New York and as a result has been damaged.

AS AND FOR A FIFTH CAUSE OF ACTION

28. Plaintiff realleges, repeats and reiterates the allegations contained in Paragraphs "1" through "27" with the same force and affect as repeated herein.

29. Defendant **THE CITY OF NEW YORK** has grossly failed to train and adequately supervise its police officers with respect to the appropriate use of force and that its officers should only use the amount of force necessary to achieve a lawful purpose.

30. Defendant **THE CITY OF NEW YORK** was negligent by failing to implement a policy with its Police Department and instruct police officers to use only the level of force necessary to achieve a legitimate purpose as opposed to using force as a means to punish perceived noncompliance.

31. **THE CITY OF NEW YORK** is negligent due to its failure to implement a policy with its Police Department or actively enforce the law, that the use of force must be commensurate with the circumstances presented.

32. The foregoing acts, omissions and systemic failures are

customs and policies of **THE CITY OF NEW YORK** which caused that police officers to commit an assault/battery upon Plaintiff and subject him to the excessive use of force occurred because these Police Officer Defendants believed that they would suffer no disciplinary actions for their failure to take proper or prudent steps in this case.

AS AND FOR AN SIXTH CAUSE OF ACTION

33. Plaintiff realleges, repeats and reiterates the allegations contained in Paragraphs "1" through "32" with the same force and affect as repeated herein.

34. Defendant **THE CITY OF NEW YORK** was negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the Police Officer Defendants knew or should have known of the bad disposition of said Defendants or had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact these officers were not suitable to be hired and employed by **THE CITY OF NEW YORK** and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals. Defendant failed to act reasonably in supervising, disciplining, removing or otherwise taking appropriate action against these officers to protect the Plaintiff herein and other members of the community similarly situated.

35. As a direct and proximate result of the Defendant's failures Plaintiff sustained physical and psychological injuries and was otherwise damaged.

AS AND FOR A SEVENTH CAUSE OF ACTION

36. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs "1" through "35" as if set forth herein at length.

37. In relevant part, 42 U.S.C. § 1985(3) provides that, "[i]f two or more persons in any State or Territory conspire... for the purpose of depriving, either directly or indirectly, any person... of the equal protection of the laws, or of equal privileges and immunities under the laws...; in any case of conspiracy set forth in this section, if one or more persons engaged therein do, or cause to be done, any act in furtherance of the object of such conspiracy, whereby another is injured in his person or property, or deprived of having and exercising any right or privilege of a citizen of the United States, the party so injured or deprived may have an action for the recovery of damages occasioned by such injury or deprivation, against any one or more of the conspirators."

38. Defendants **P.O. SHAUN HEALY (TAX REG. 950577)** and **P.O. JONATHAN BARUCCHERI (TAX REG. 952448)** did conspire to directly violate Plaintiff's federal Constitutional and Statutory rights, as enumerated above, by virtue of their cooperative effort to assault and batter Plaintiff and subject him to the excessive use of force

without legal authority or consent. Said conduct of Defendants was motivated by a racial animus and or a blatant disregard for individual and constitutional rights.

39. Defendants **P.O. SHAUN HEALY (TAX REG. 950577)** and **P.O. JONATHAN BARUCCHERI (TAX REG. 952448)** did conspire to indirectly violate Plaintiff's federal Constitutional and Statutory rights, as enumerated above, by virtue of their cooperative effort to assault and batter Plaintiff and subject him to the excessive use of force without legal authority or consent. Said conduct of Defendants was motivated by a racial animus and or a blatant disregard for individual and constitutional rights.

40. That Defendant **NYPD OFFICERS** did in fact further the conspiracy by assaulting and battering Plaintiff and subjecting him to the excessive use of force without legal authority or consent.

41. As a result of the Defendants' conduct Plaintiff suffered a deprivation of the above enumerated rights guaranteed by the United States Constitution, the laws of The United States and the State of New York and otherwise suffered personal injuries.

AS AND FOR AN EIGHTH CAUSE OF ACTION

42. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs "1" through "41" as if set forth herein at length.

43. In relevant part 42 U.S.C. § 1986 provides that, "[e]very person who, having knowledge that any of the wrongs conspired to be done, and mentioned in section 1985 of this title, are about to be

committed, and having power to prevent or aid in preventing the commission of the same, neglects or refuses so to do, if such wrongful act be committed, shall be liable to the party injured, or his legal representatives, for all damages caused by such wrongful act, which such person by reasonable diligence could have prevented; and such damages may be recovered in an action on the case; and any number of persons guilty of such wrongful neglect or refusal may be joined as defendants in the action."

44. Defendants **P.O. SHAUN HEALY (TAX REG. 950577)** and **P.O. JONATHAN BARUCCHERI (TAX REG. 952448)**, as participants, had knowledge of the conspiracy to deprive Plaintiff of certain of his federal constitutional and statutory rights.

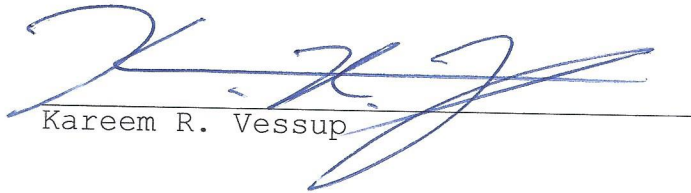
45. Defendants **P.O. SHAUN HEALY (TAX REG. 950577)** and **P.O. JONATHAN BARUCCHERI (TAX REG. 952448)**, as participants, had the power to prevent or aid in the prevention of the acts that infringed upon Plaintiff's federal Constitutional and Statutory rights.

46. Despite having this power **P.O. SHAUN HEALY (TAX REG. 950577)** and **P.O. JONATHAN BARUCCHERI (TAX REG. 952448)** neglected or refused to prevent the acts of discrimination from being perpetrated upon plaintiff.

47. As a result of Defendants' actions, or failures thereof, Plaintiff suffered a deprivation of his rights guaranteed by the United States Constitution, the laws of The United States and the State of New York and was otherwise caused to suffer personal injuries.

WHEREFORE, the Plaintiff, **DARRELL FRANCIS**, demands judgment against the Defendants, together with the costs and disbursements of this action in an amount of damages greater than the jurisdictional limit of any lower court which would otherwise have jurisdiction. Additionally, Plaintiff demands in respect of all causes of action, punitive damages and attorney fees pursuant to 42 USC Section 1988.

Dated: JAMAICA, NEW YORK
AUGUST 26, 2016



Kareem R. Vessup

Index No.

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS**

DARRELL FRANCIS

Plaintiff,

-against-

THE CITY OF NEW YORK, P.O. SHAUN HEALY (TAX REG. 950577) and P.O.
JONATHAN BARUCCHERI (TAX REG. 952448),

Defendants,

SUMMONS AND COMPLAINT

LAW OFFICE OF KAREEM R. VESSUP ESQ.

Attorneys for Plaintiff

DARRELL FRANCIS

89-31 161st Street, Suite 705

Jamaica, New York 11432

Tel (718) 219-8744

Fax (718) 228-7733
